

On October 3, 2025, Defendants filed Notice of Hearing, through Counsel Paige E. Adaskaveg and Mintz Levin, et. al, on Verified Application for Admission of Ryan T. Dougherty, Esq. to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Ryan T. Dougherty, Esq., and the Declaration of Paige E. Adaskaveg, Esq. The Proof of Service shows that service was accomplished via U.S. Mail on October, 2025. The Court did not receive timely oppositions from Plaintiff City of Concord.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Ryan Dougherty declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Dougherty is an attorney licensed to practice in the District of Columbia, the state courts of Maryland, Massachusetts, and before the federal courts United Court of Appeal, 1st Circuit, the District of Massachusetts, and the Eastern District of Michigan. He is employed by Mintz Levin's Washington D.C. office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Ryan T. Dougherty, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on January 28, 2026.

14. 9:00 AM CASE NUMBER: C25-01474
CASE NAME: FINWISE BANK VS. DEBRA VERNON
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION
FILED BY: FINWISE BANK

TENTATIVE RULING:

Summary

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending arbitration.

Background

On September 3, 2026, Plaintiff Finwise Bank ("Plaintiff") submitted an application for writ of possession seeking to recover the New Steinway model Spirio M Grand piano, serial #625576, with

ebony polish finish and its accompanying adjustable bench ("Piano") which is currently possessed by Defendant Debra Vernon ("Defendant") and is the subject of this breach of contract case. Plaintiff's application is accompanied by notice, Memorandum of Points and Authorities, Declaration of Glen Turnipseed. The Piano is located at Defendant's Danville home. This case has been referred to binding arbitration.

Defendant filed an opposition on January 16, 2026 informing the Court that this matter has been assigned to AAA for binding arbitration. Defendant claims that a writ of possession is premature and will serve to undermine the authority of the arbitrator. Defendant seeks a stay of this case, including the application for writ of possession for the Piano.

Plaintiff's reply brief points out to the Court that Defendant has not filed a request for stay, and that arbitration does not remove the court's authority to grant provisional remedies, such as their request for a writ of possession.

Analyses

The authority for the Court to issue a writ of possession is found in Cal. Code of Civ. Proc. §512.010, et. Seq. To prevail on a writ, the applicant must satisfy the requirements of Section 512.060, which requires the applicant to establish the probable validity of the plaintiff's claim to possession of the property.

Here, the Court is not convinced that Plaintiff has met that burden without further proceedings. While Plaintiff has attached copies of the loan agreement allegedly breached by Plaintiff, Defendant sets forth legitimate allegations that Plaintiff has not properly established valuation or has complied with the Truth in Lending act provisions. Prior to arbitration, where those matters will be determined, it is premature to conclude that Plaintiff has established a claim to possession of the Piano, which is superior to its right to recover monetary damages resulting from an alleged breach of a loan agreement.

As to the request for stay, the Court is persuaded by Defendant's arguments that a stay on these proceedings pending arbitration is warranted in order to avoid the waste of judicial resources, to prevent parallel litigation and to allow the arbitration to conclude.

After considering the papers submitted by the parties, and applying the relevant statutory and decisional authority, the Court finds good cause to deny this application.

Ruling

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending the conclusion of arbitration. The Court continues the case management conference to July 21, 2026 at 8:30 a.m.. The parties are requested to file a further case management conference statement to inform the Court about the status of arbitration.

15. 9:00 AM CASE NUMBER: C25-01869
CASE NAME: JOHN BENNETT STUDHOLME VS. SUBARU CORPORATION,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SUBARU OF AMERICA, INC.,